Montgomery County District Court

Cause No. 2024-CV-0046

Billy Jones, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-29-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Defendant asserts the defense of comparative responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. To the extent the evidence shows that Plaintiff failed to keep a proper lookout, failed to yield the right-of-way at the intersection, or otherwise contributed to the collision, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and any recovery is barred if Plaintiff's responsibility exceeds fifty percent.

Second, Defendant asserts proportionate responsibility of non-parties. Defendant reserves the right to designate responsible third parties under Section 33.004 of the Texas Civil Practice and Remedies Code, including any driver or party whose negligence contributed to the occurrence.

Third, Defendant asserts the defense of sudden emergency. Defendant states that the collision resulted from a sudden and unexpected emergency not of Defendant's own making, requiring an immediate response, such that Defendant acted as a reasonably prudent person would under the same circumstances.